

195. Representation of railway administration. - (1) A railway administration may, by order in writing, authorise any railway servant or other person to act for, or represent it, as the case may be, in any proceeding before any civil, criminal or other court.

(2) A person authorized by a railway administration to conduct prosecution on its behalf shall, notwithstanding anything in Sec. 302 of the Code of Criminal procedure, 1973 (2 of 1974), be entitled to conduct such prosecution without the permission of the magistrate.

Comment

Section 195 provides for representation of railway administration in proceedings before Civil, Criminal and other Courts.

196. Power to exempt railway from Act. – (1) the Central Government may, by notification, exempt any railway from all or any of the provision of this Act.

(2) Every notification issued under sub-section (1) shall be laid as soon as may be after it is issued before each House of Parliament.

Comment

Section 196 empowers the Central Government to exempt any railway from all or any provisions of this Act.

197. Matters supplemental to the definitions of “railway” and “railway servant” . – (1) for the purposes of Secs. 67, 113, 121, 123, 147, 151 to 154, 160, 164, 166, 168, 170, 171, 173 to 176, 179, 180, 184, 185, 187 to 190, 192, 193, 195 and of this section, the word “railway” whether it occurs alone or as a prefix to another word, as reference to the railway or portion of a railway under construction and to a railway or portion of a railway not used for the public carriage of passengers, animals or goods as well as to a railway falling within the definition of that word in Cl. (31) of Sec. 2.

(2) For the purposes of Secs. 7, 24, 113, 146, 172 to 176 and 188 to 190, the expression “railway servant” includes a person employed under a railway in connection with the service thereof by a person fulfilling a contract with the railway administration.

Comment.

Section 197 provides for the matters supplemental to the definition of railway and railway servant.